

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Nicholas Milyadis	Team: Team # 1	CCRB Case #: 201300086	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 12/18/2012 11:00 PM, Wednesday, 12/19/2012 12:00 AM, Thursday, 12/19/2013 12:00 AM	Location of Incident: 71st Precinct stationhouse	18 Mo. SOL 6/18/2014	Precinct: 71
Date/Time CV Reported	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 01/03/2013 10:25 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			071 PCT
2. POM Paul Dieugenia	13223	946929	071 PCT
3. POM Eliot Arias	18208	936140	071 PCT
4. POM Timothy Donohue	05558	950340	071 PCT
5. An officer			071 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT David Rodgers	02827	929058	071 PCT
2. POM Deon Crockwell	08100	938290	071 PCT
3. SGT Luidely Baez	05211	936037	071 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Eliot Arias	Force: PO Eliot Arias used physical force against § 87(2)(b)	A . Exonerated
B . POM Paul Dieugenia	Force: PO Paul Dieugenia used physical force against § 87(2)(b)	B . Exonerated
C . An officer	Force: An officer used a chokehold against § 87(2)(b)	C . Officer(s) Unidentified
D . POM Eliot Arias	Force: PO Eliot Arias used a chokehold against § 87(2)(b)	D . Unsubstantiated
E . POM Paul Dieugenia	Force: PO Paul Dieugenia used a chokehold against § 87(2)(b)	E . Unsubstantiated
F . Officers	Force: Officers used physical force against § 87(2)(b)	F . Exonerated
G . Officers	Abuse: Officers damaged § 87(2)(b)'s property.	G . Exonerated
H . POM Eliot Arias	Abuse: PO Eliot Arias damaged § 87(2)(b)'s property.	H . Exonerated
I . POM Timothy Donohue	Force: PO Timothy Donohue used physical force against § 87(2)(b)	I . Exonerated

Case Summary

On December 19, 2012, § 87(2)(b) filed this complaint via telephone with the Internal Affairs Bureau (IAB Log# 12-65472) (encl. d1). This case was forwarded to the Civilian Complaint Review Board on January 3, 2013 (encl. d2).

On December 18, 2012, at approximately 10:11 PM, § 87(2)(b) was brought to the 71st Precinct stationhouse after being arrested § 87(2)(b). He was arrested by PO Paul Dieugenia and his partner PO Eliot Arias. The following allegations resulted:

Allegation A: Force - PO Eliot Arias used physical force against § 87(2)(b)

Allegation B: Force - PO Paul Dieugenia used physical force against § 87(2)(b)

§ 87(2)(g)

it is recommended that **Allegations A and B** be closed as *exonerated*.

Allegation C: Force – An officer used a chokehold against § 87(2)(b)

Allegation D: Force – PO Eliot Arias used a chokehold against § 87(2)(b)

Allegation E: Force - PO Paul Dieugenia used a chokehold against § 87(2)(b)

§ 87(2)(g)

it is recommended that **Allegation C** be closed as *officer unidentified* and **Allegations D and E** be closed as *unsubstantiated*.

Allegation F: Force - Officers used physical force against § 87(2)(b)

§ 87(2)(g)

it is recommended that **Allegations F** be closed as *exonerated*.

Allegation G: Abuse - Officers damaged § 87(2)(b)'s property.

Allegation H: Abuse – PO Eliot Arias damaged § 87(2)(b)'s property

§ 87(2)(g)

it is recommended that **Allegations G and H** be closed as *exonerated*.

Allegation I: Force – PO Timothy Donohue used physical force against § 87(2)(b)

§ 87(2)(g)

it is recommended that **Allegation I** be closed as *exonerated*.

§ 87(2)(g)

Results of Investigation

Civilian Statement(s)

Complainant/Victim: § 87(2)(b)

is a § 87(2)(b) black male, § 87(2)(b)

, with a bald head and brown eyes. At the time of the interview, § 87(2)(b) was incarcerated at the Anna M. Kross Center at Riker's Island.

§ 87(2)(a) PBH §18(6)

On December 19, 2012, § 87(2)(b) called IAB to file the following complaint (encl. d1). On February 22, 2013, § 87(2)(b) was interviewed at the AMKC facility on Riker's Island and provided the following statement (encl. d5-d7). § 87(2)(g)

A while later, two officers, identified by the investigation as PO Paul Dieugenia and PO Eliot Arias, responded to the location in an unmarked sedan, accompanied by two officers who remained unidentified by the investigation, PO3 and PO4, in a marked patrol car. § 87(2)(b) described PO Dieugenia as a Caucasian male officer in his mid to late-thirties, possibly of Italian descent, standing five feet, ten inches tall, weighing less than two hundred pounds, with a medium build and dressed in street clothes. § 87(2)(b) stated that PO Dieugenia was likely his arresting officer, due to conversations that they had during the incident, and identified him as “Deugenia.” He described PO Arias as a Hispanic male officer in his mid to late-thirties, standing five feet eight to five feet nine inches tall, weighing less than two hundred pounds, with a muscular build and dressed in street clothes. § 87(2)(b) was only able to describe PO3 and PO4 as uniformed Caucasian male officers.

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The officers placed § 87(2)(b) in a holding cell and instructed him to remove his shoes and socks, which he did. § 87(2)(b) was the only prisoner in the cell, while there was a Caucasian or Hispanic female, identified by the investigation as § 87(2)(b) estimated to be in her fifties or sixties, who told § 87(2)(b) that she had been arrested for drug possession, in an adjacent cell, and two or three African-American males in the holding cell next to the female's cell. Approximately thirty minutes to one hour after being placed in the holding cell, at approximately 11:00 PM, PO Dieugenia and PO Arias came into the room containing the holding cell and told him that he was only allowed to wear one layer of clothing in the holding cell. When § 87(2)(b) refused to remove his clothing, PO Dieugenia told him that, if he did not voluntarily remove his clothing, the officers would forcibly remove it.

When § 87(2)(b) told PO Dieugenia and PO Arias that he would not remove his clothing, they pulled him out of the holding cell and pulled him into a single-occupancy bathroom near the holding cell area. PO Dieugenia and PO Arias threw § 87(2)(b) to the ground, so that he landed on his side, on his shoulder and elbow, while approximately three or four other officers, who remained unidentified by the investigation, which § 87(2)(b) was only able to describe due to his obstructed vision, as uniformed male officers of unknown race, entered the bathroom. Later in the interview, § 87(2)(b) specified that, when PO Dieugenia and PO Arias took him to the ground, one of the officers grabbed him in a headlock while the other pulled his legs out from under him; § 87(2)(b) was unable to specify which officer engaged in which action. § 87(2)(b) stated that § 87(2)(b) may have witnessed the incident in the bathroom, since the amount of officers inside prevented the door from closing completely.

PO Dieugenia and PO Arias both put their hands around § 87(2)(b)'s throat and choked him. Officers pulled off § 87(2)(b)'s shirt, pants, and removed his long johns. In the process of removing the long johns, they were ripped. The officers ripped § 87(2)(b)'s tank top but left it on him. § 87(2)(b) was unable to identify which officers participated in ripping his clothing off, since he was unable to see the officers. § 87(2)(b) confirmed that officers tore his clothing while "ripping" it off of his body. An unknown number of officers, including PO Dieugenia and PO Arias, kned § 87(2)(b) in the ribs, an unknown number of times. Later in the interview, § 87(2)(b) specified that officers held him down with their knees on his back, as he attempted to reposition his body on the ground so that he was lying on his stomach, rather than his side. § 87(2)(b) did not recall what he was doing with his hands or arms at the time, he denied that he was attempting to resist the officers' efforts to remove his clothing or restrain him. § 87(2)(b) also alleged that an unknown number of officers punched him but was unable to specify where the officers punched him or how many times they punched him.

§ 87(2)(b) was placed back in the holding cell wearing his torn tank top and boxer shorts. § 87(2)(b) made a request to PO Dieugenia to go to the hospital and PO Dieugenia told him that his arrest processing would be delayed if he went to the hospital. § 87(2)(b) persisted in requesting medical treatment and an ambulance arrived at the stationhouse an unknown amount of time later. § 87(2)(b) was transported to § 87(2)(b) accompanied by an officer, identified by the investigation as PO Dieugenia, where he underwent an x-ray examination. A physician informed § 87(2)(b) that he had sustained scratches to his neck, bruising to his ribs and abrasions to his arms. At some point while § 87(2)(b) was at the hospital, another officer, identified by the investigation as PO Timothy Donohue, relieved PO Dieugenia. § 87(2)(b) described the escorting officer and PO Donohue as Caucasian, male,

uniformed officers and denied that either officer was present for the prior incident in the bathroom.

§ 87(2)(b) was prescribed painkillers and was transported back to the 71st Precinct stationhouse. At approximately 7:00 AM or 8:00 AM on December 19, 2012, two officers came into the holding cell area and told § 87(2)(b) that he would be placed in leg shackles to be transported to Brooklyn Central Booking. § 87(2)(b) told the officers that he should not be placed in leg shackles, since it was not procedure to place prisoners in leg shackles when they were transported to Central Booking. § 87(2)(b) described one of the officers as an African-American male officer in his twenties, standing five feet, six inches to five feet, seven inches tall, with a medium build and dressed in uniform. § 87(2)(b) described the other unidentified officer as an African-American male officer in his twenties, standing five feet, eight inches tall, with a heavy build and dressed in uniform. One of these officers was identified by the investigation as PO Deon Crockwell

PO Crockwell and the unidentified officer left the room and came back with PO Arias. PO Arias said, “I see we’re going to have another problem now.” He left and returned with PO Dieugenia. PO Crockwell and the unidentified officer stood to the side while PO Dieugenia and PO Arias were joined by other officers and entered the cells.

§ 87(2)(b) did not get a good look at the officers who entered the cells with PO Arias and Dieugenia. Officers grabbed § 87(2)(b) and pulled him down to the ground. § 87(2)(b) was unable to specify which officers participated in bringing him to the ground. PO Arias punched § 87(2)(b) in the face, above his left eyebrow, and unidentified officers kned him in the ribs. An officer tried to put § 87(2)(b) in a “figure four leg lock.” Officers placed leg shackles on § 87(2)(b)’s legs and pushed the metal “into the bone.” § 87(2)(b) screamed in pain and kicked his legs, in an attempt to relieve the pain and discomfort, but did not otherwise move his body or attempt to escape, resist, or strike the officers. Later in the interview, § 87(2)(b) specified that he pulled one of his arms away from officers on several occasions, to prevent the officers from breaking his wrist. There was no one else in the cells at the time.

After the leg shackles were placed on § 87(2)(b) he requested medical treatment. An ambulance transported him to § 87(2)(b) where he was diagnosed with additional bruising to his ribs, red marks on his head, and possible swelling to his head. § 87(2)(b) was prescribed more painkillers and was transported back to the 71st Precinct stationhouse. After waiting in a holding cell for an unknown period of time, in handcuffs, § 87(2)(b) was transported to Brooklyn Central Booking. § 87(2)(b) saw a judge and was released on his own recognizance.

Witness: § 87(2)(b)

§ 87(2)(b) is a white female. She was born § 87(2)(b).

CCRB Statement:

On July 22, 2013, § 87(2)(b) provided a phone statement to the CCRB.

On December 18, 2012, at approximately 10:00 PM, § 87(2)(b) was inside the 71st Precinct stationhouse holding cells and observed officers bring a male, identified by the investigation as § 87(2)(b) into the holding cell area. § 87(2)(b) observed § 87(2)(b) refuse to remove his articles of clothing when requested by officers. Approximately five white, male,

uniformed officers held § 87(2)(b) placed him in handcuffs, and then led him away to another location. § 87(2)(b) did not see where the officers brought § 87(2)(b) and did not see him at any point after he was removed from the holding cell area (encl. e1).

NYPD Statement(s):

Subject Officer: PO ELIOT ARIAS

- PO Eliot Arias is § 87(2)(b). He is a Hispanic male, § 87(2)(b), has black hair, and brown eyes.
- On December 18, 2012 PO Arias worked from 6:30 PM until 3:05 AM on December 19, 2012. PO Arias was assigned to anti-crime. He was partnered with PO Dieugenia, was on duty, and was in plainclothes. He was assigned to an unmarked vehicle. It was a four door sedan, § 87(2)(e). He did not recall the model or color. PO Arias was driving.

Memo Book

At 10:00 PM, there was a radio run. At 10:11 PM, PO Dieugenia arrested § 87(2)(b). He is a black male, § 87(2)(b). He lives at § 87(2)(b). At the time and place of occurrence, the defendant entered and remained closed in a commercial vehicle and removed property without permission or authority to do so.

§ 87(2)(a) 160.50

During a search incident to lawful arrest, defendant had a zip lock bag of marijuana on his person. At 12:20 AM, criminal complainant was dropped off at his home. At 3:05 AM PO Arias ended his tour.

CCRB Statement

On June 27, 2013, PO Arias provided the following statement at the CCRB. PO Arias was interviewed a second time on December 5, 2013 (encl. f5-f9):

On December 18, 2013, at 10:00 PM, PO Arias responded to a crime in progress with his partner, PO Dieugenia. They arrested § 87(2)(b). He did not recall who transported § 87(2)(b) to the stationhouse. At the stationhouse, PO Arias took § 87(2)(b) to the holding cells while PO Dieugenia interviewed § 87(2)(b), a witness, in the muster room.

In the room containing the holding cells, PO Arias instructed § 87(2)(b) to remove his shoelaces, his belt, his sweatshirt, and his long sleeve shirt. PO Arias observed that § 87(2)(b) was messy and dirty, and attributed it to § 87(2)(b) being a drug addict. § 87(2)(b) started saying, "I'm not a faggot. I'm not gonna take off my shirt." PO Arias asked him multiple times to comply. He believed § 87(2)(b) was acting tough for the other individuals who were detained in the holding cells, which were full that evening.

PO Arias told § 87(2)(b) that he would take him to the bathroom, which was five feet away, because they had to follow protocol. The bathroom is outside of the room with the holding cells, but is visible from the holding cells. The people in the holding cells would not be able to see into the bathroom because PO Arias closed the door most of the way. He did not close it entirely for his safety, in case a prisoner attempts to fight him. Once in the bathroom, he removed § 87(2)(b)'s handcuffs and asked him multiple times to remove the clothing. When § 87(2)(b) refused to comply, PO Arias instructed him to face the wall and put his hands on it, stating he was going to remove § 87(2)(b)'s shirt for him. With § 87(2)(b)'s hands against the wall, PO Arias started to remove one of his shirts by grabbing at the shirt's forearm.

§ 87(2)(b) started swinging his arms before PO Arias could remove the shirt. When PO Arias tried to grab § 87(2)(b)'s forearm, § 87(2)(b) resisted by trying to shake off PO Arias. Then he started to flail his arms above his head and swing them backwards. When § 87(2)(b) tried to turn around, PO Arias attempted to grab both of § 87(2)(b)'s arms to get him under control. § 87(2)(b) fell to the ground and PO Arias fell on top of him. § 87(2)(b) was on his side and tried to reach behind himself and strike PO Arias with backhanded strikes. While trying to restrain § 87(2)(b), § 87(2)(b)'s shirt was unintentionally ripped. PO Arias was not sure if it was the t-shirt or the tank top. PO Arias eventually restrained § 87(2)(b). While restrained, § 87(2)(b) kept attempting to kick PO Arias but the blows never made contact with PO Arias. PO Arias was ready to block the kicks with his left hand, and said that if any of them connected he would have had the charges against § 87(2)(b) raised to assault in the second degree. PO Arias punched § 87(2)(b) once or twice on the side of his stomach with minimal force to get him under control. PO Arias asked § 87(2)(b) if he was going to calm down. § 87(2)(b) was quiet. PO Arias never put § 87(2)(b) in a headlock, or put his arm around § 87(2)(b)'s neck or throat. He did not see any other officer do that either.

When PO Arias got § 87(2)(b) to his feet, PO Arias asked § 87(2)(b) if he was going to take off his shirt. § 87(2)(b) said no. PO Arias told § 87(2)(b) that he had to take off his shirt. § 87(2)(b) started to move his arms again. PO Arias intentionally brought § 87(2)(b) to the ground by leveraging his arm down. PO Arias did not trip § 87(2)(b) or kick his legs out from under him either time he was brought to the ground. While on the ground, § 87(2)(b) tried to punch and kick PO Arias. PO Arias did not have to use force to gain control of § 87(2)(b) he let § 87(2)(b) lay on the ground for approximately ten to twenty seconds before asking him if he was going to calm down. § 87(2)(b) waited a bit before saying okay. PO Arias removed § 87(2)(b)'s shirt. In observance of the one-layer rule, PO Arias told § 87(2)(b) to remove his pants because he was wearing long johns. § 87(2)(b) did not reply or comply. PO Arias had to remove § 87(2)(b)'s pants. PO Arias did not recall if § 87(2)(b) was wearing shoes at the time. PO Arias did not remember if he had removed § 87(2)(b)'s long johns, and did not recall ripping them.

PO Dieugenia came into the bathroom at some point to assist PO Arias because he had heard when § 87(2)(b) and PO Arias fell to the ground. PO Arias was unsure if PO Dieugenia came into the bathroom when they had both fallen to the ground the first time, or if he came in when PO Arias intentionally brought § 87(2)(b) to the ground. PO Arias believed it was the second time because § 87(2)(b) started screaming. PO Arias believed that there were other officers as well, but was too focused on his own safety while dealing with § 87(2)(b) and was unable to recall who they were or how many there were. PO Dieugenia grabbed § 87(2)(b) and helped get him off the floor.

PO Arias did not kick § 87(2)(b) while he was on the ground, nor did other officers. Officers did not direct profanity towards § 87(2)(b).

§ 87(2)(b) never complained to PO Arias about difficulty breathing. § 87(2)(b) was brought to his feet after his shirt and long johns were taken off and he was escorted to the holding cells. PO Arias had to remove the long johns for § 87(2)(b) after he refused to comply. PO Arias never heard § 87(2)(b) request medical attention. PO Arias did not observe any injuries on § 87(2)(b). PO Arias never saw § 87(2)(b) again.

PO Arias took § 87(2)(b) home, and then came back to the stationhouse for his end of tour. Sometime later, PO Dieugenia told PO Arias about § 87(2)(b) having to go to the hospital. The next day, PO Arias did not see § 87(2)(b) being brought back from the hospital. PO Arias did not hear about an incident occurring when § 87(2)(b) was brought back to the stationhouse.

When asked if wanted to add anything to the record, PO Arias said, “When we checked the guy’s record, § 87(2)(b).”

Subject Officer: PO PAUL DIEUGENIA

- PO Dieugenia is a § 87(2)(b) white male officer, § 87(2)(b), with black hair and brown eyes.
- On December 18, 2012, PO Dieugenia worked from 6:30 PM to 4:05 PM on the following day and was assigned to the 71st Precinct anti-crime team with PO Arias. PO Dieugenia was dressed in plainclothes and was assigned to an unmarked vehicle, § 87(2)(e).

Memo Book:

PO Dieugenia’s memo book noted that, at 10:00 PM on December 18, 2012, he responded to a report of a crime in progress broadcasted over the radio by the 71st Precinct robbery auto, which was in pursuit of a male in possession of stolen property. The male, identified by the investigation as § 87(2)(b) was stopped on the southeast corner of Albany Avenue and East New York Avenue in Brooklyn, at which point he was positively-identified § 87(2)(b) by a complaining witness, § 87(2)(b). At 10:09 PM, the owner of the property, § 87(2)(b), was present at the location. § 87(2)(a) 160.50. At 10:11 PM, § 87(2)(b) was arrested. SGT Cheng of Patrol Borough Brooklyn South was present at the location. At 10:20 PM, PO Dieugenia was present at the 71st Precinct stationhouse, and noted that PO Arias was lodging § 87(2)(b) and used force to restrain him. At § 87(2)(b) § 87(2)(b) was transported to § 87(2)(b) in ambulance number § 87(2)(b), on the authority of SGT Hudak, the 71st Precinct desk sergeant. At § 87(2)(b), he arrived at the hospital. At 7:45 AM, he was relieved by PO Donohue. At 8:00 AM, he arrived at the 71 PCT and did administrative work. At 9:19 AM, he was ready for work. PO Dieugenia ended his tour at 9:25 AM. At 9:30 AM, he had a new tour for December 19, 2013, because he had to be in court that day. At 11:00 AM, PO Dieugenia spoke with the assistant district attorney.

Arrest Report § 87(2)(b)

On December 18, 2013, PO Dieugenia made a note in the arrest report that § 87(2)(b) s clothes were dirty and torn.

CCRB Statement:

On June 20, 2013, PO Dieugenia was interviewed at the CCRB. On December 12, 2013, he was interviewed a second time (encl. g14-g18).

On December 18, 2012, PO Dieugenia was involved with arresting § 87(2)(b). He did not recall the details that led him to note that § 87(2)(b) s clothes were dirty and torn in the arrest report.

PO Dieugenia had heard after the fact that “something” happened with § 87(2)(b) inside the stationhouse, since he recorded a memo book entry documenting that force was used by PO Arias

to restrain § 87(2)(b) during his lodging in the holding cell. PO Dieugenia did not recall how he obtained the information and did not recall the details of the incident. PO Dieugenia stated that the incident occurred before he got back to the stationhouse from the arrest location. PO Dieugenia did not recall which officers were involved in the incident.

At an unknown time after PO Dieugenia arrived at the stationhouse, an officer came into PO Dieugenia's office and told him that § 87(2)(b) had made a medical complaint, the type of which PO Dieugenia was unable to recall. PO Dieugenia did not recall what SGT James Hudak was doing during the incident and did not recall whether SGT Hudak was the officer who instructed him to accompany § 87(2)(b) to the hospital. PO Dieugenia did not recall that § 87(2)(b) made any allegations against officers or complained of any injuries that he allegedly sustained during the incident. PO Dieugenia recalled that he accompanied § 87(2)(b) to the hospital in an ambulance. § 87(2)(b) was likely transported in leg shackles, in accordance with NYPD policy regarding the transport of prisoners to the hospital. PO Dieugenia did not recall what § 87(2)(b) was wearing when he went to the hospital. § 87(2)(b) was calm while inside the ambulance. PO Dieugenia later heard medical personnel telling § 87(2)(b) that there was nothing wrong with him while at the hospital.

PO Dieugenia did not recall whether he ever saw § 87(2)(b) present at the stationhouse after he had been removed to the hospital. PO Dieugenia did not recall if he was on-duty when § 87(2)(b) returned to the stationhouse. PO Dieugenia did not know whether § 87(2)(b) ever requested medical treatment after returning to the stationhouse from the hospital.

Subject Officer: PO TIMOTHY DONOHUE

- *PO Donohue is § 87(2)(b). He is a white male, § 87(2)(b), has blond hair, and blue eyes.*
- *On December 19, 2012 PO Donohue worked from 7:05 AM until 3:40 PM. PO Donohue was assigned to a hospitalized prisoner. He was in uniform, was not assigned a motor vehicle, and was working alone.*

Memo Book

At § 87(2)(b), PO Donohue went to § 87(2)(b) for prisoner § 87(2)(b) who was in the Emergency Room. At § 87(2)(b), he was released from § 87(2)(b) with § 87(2)(b). They arrived at the 71st Precinct stationhouse at 9:25 AM. At § 87(2)(b) he transported § 87(2)(b) back to § 87(2)(b). At § 87(2)(b), he was released from § 87(2)(b) and § 87(2)(b) was taken in the prisoner transport to Brooklyn Central Booking.

CCRB Statement

On September 24, 2013, PO Timothy Donohue provided the following statement at the CCRB (encl. h4-h6):

On December 19, 2012, at approximately 7:45 AM, PO Donohue went to § 87(2)(b) to take over for another officer who was escorting § 87(2)(b). PO Donohue did not remember who that officer was. § 87(2)(b) was treated and then released at 9:10 AM. PO Donohue did not recall any injuries to him, but said it would be in the medical treatment log. PO Donohue took § 87(2)(b) back to the 71st Precinct stationhouse and they arrived there at 9:25 AM. PO Donohue placed § 87(2)(b) in a holding cell almost immediately.

§ 87(2)(b) fought with officers right outside of the cells. PO Donohue thinks it was because § 87(2)(b) did not want to be placed in leg shackles for transport. PO Donohue said that § 87(2)(b) was being irate and was cursing. PO Deon Crockwell was present as well as PO Dieugenia. PO Donohue was unsure if PO Arias was there. He did not recall a supervisor being there, but said that there might have been. PO Donohue assisted them with detaining § 87(2)(b). One of the other officers brought § 87(2)(b) to the ground because he was kicking at PO Dieugenia and the other officers. PO Donohue helped to pull § 87(2)(b)'s arm back so he could be placed into handcuffs.

In the process of restraining § 87(2)(b) PO Donohue never punched § 87(2)(b) nor did the other officers. He never knelt § 87(2)(b) in the ribs, nor did the other officers. PO Donohue said he did not put § 87(2)(b) into a leg lock, nor did the other officers. § 87(2)(b) was never placed into a headlock by PO Donohue or the other officers. PO Donohue denied ever placing his arm around § 87(2)(b)'s throat. PO Donohue said that no sergeants were involved with detaining § 87(2)(b) but said that the desk sergeant might have witnessed the incident.

After he was handcuffed, § 87(2)(b) was placed in leg shackles. § 87(2)(b) then complained of wrist pain. PO Donohue attributed the wrist pain to the struggle to get him handcuffed. PO Donohue did not recall § 87(2)(b) complaining of chest pain, which was noted in the medical treatment of prisoner log by PO Crockwell. EMS was called and they transported § 87(2)(b) back to § 87(2)(b). After he was treated, PO Wagner LaFleur and PO Daniel Domarecki picked them up and brought them to Brooklyn Central Booking.

Witness Officer: SGT DAVID RODGERS

- *SGT David Rodgers is § 87(2)(b). He is a white male, § 87(2)(b), has brown hair, and blue eyes.*
- *On December 18, 2012 SGT David Rodgers worked from 2:50 PM until 11:47 PM. SGT David Rodgers was the desk officer for the 71 precinct. He did not recall who the telephone switchboard operator was. He was not assigned a motor vehicle. SGT David Rodgers was in uniform.*

Memo Book

SGT David Rodgers did not have any memo book entries related to the incident.

CCRB Statement

On July 2, 2013, SGT David Rodgers provided the following statement at the CCRB (encl. i3-i5):

On December 18, 2012, SGT David Rodgers was working at the front desk for the 71st Precinct stationhouse. After reviewing the 71st Precinct Command Log entry for § 87(2)(b)'s arrest, that he did not write, SGT Rodgers did not recall § 87(2)(b) being brought in. He recognized his handwriting before and after the entry. PO Dieugenia of the Anti-Crime unit was the arresting officer.

SGT Rodgers' first recollection of § 87(2)(b) was when he was in the main holding cell, and SGT Rodgers could see him through the plexiglass. § 87(2)(b) was being verbally combative, screaming at the top of his lungs at PO Dieugenia. SGT Rodgers did not remember PO Dieugenia's reaction. SGT Rodgers did not recall any other officers interacting with § 87(2)(b).

§ 87(2)(b) PO Arias would have been in the vicinity because he is PO Dieugenia's partner, but SGT Rodgers did not specifically recall him being present at the holding cells or interacting with § 87(2)(b). There were numerous prisoners present that evening, but SGT Rodgers could not recall their genders. SGT Rodgers remembered the cell attendant being there, but did not recall who it was.

§ 87(2)(b) eventually removed one of his shirts, as per procedure to wear one layer of clothing, but SGT Rodgers did not recall if § 87(2)(b) did it on his own or if it required an officer. SGT Rodgers did not recall § 87(2)(b) being brought into a bathroom that evening. After § 87(2)(b) was down to one layer of clothing, he was placed into a holding cell. SGT Rodgers did not recall any further incident that evening. SGT Rodgers never saw § 87(2)(b) on the ground, never saw him being punched or kicked by officers, and never observed an officer putting their arm around § 87(2)(b)'s neck and placing him into a headlock.

As noted in the Command Log, § 87(2)(b) requested medical treatment later in the morning. SGT Rodgers did not have an independent recollection of the request for medical treatment. He did not recall seeing any injuries on § 87(2)(b) or him complaining of any injuries, of complaining of any medical conditions, or complaining about being unable to breathe.

When § 87(2)(b) was brought back to the stationhouse from receiving medical treatment later in the day on December 19, 2012, SGT Rodgers was not present for duty yet.

Witness Officer: PO DEON CROCKWELL

- *PO Deon Crockwell is § 87(2)(b). He is a black male, § 87(2)(b), has black hair, and brown eyes.*
- *On December 19, 2012, PO Crockwell from 7:05 AM until 3:40 PM. PO Crockwell was assigned to Patrol Sectors I and J. He was working with PO Gerard Maharaj. They were in uniform and were assigned to marked RMP #2343.*

Memo Book

At § 87(2)(b), PO Crockwell escorted EMS to § 87(2)(b) Emergency Room. He resumed patrol at 11:21 AM.

CCRB Statement

On October 18, 2013, PO Deon Crockwell provided the following statement at the CCRB (encl. j4-j6):

PO Deon Crockwell did not recall the incident until he reviewed the medical treatment of prisoner form. PO Crockwell explained that he might have escorted § 87(2)(b) after he was removed from the holding cells, but before he was placed in the ambulance, and that it did not necessarily mean that he was involved with taking the prisoner out of the cell. PO Crockwell acknowledged that his hand writing was on the form for "defendant complaining of chest and wrist pain," but did not recall an interaction with § 87(2)(b).

PO Crockwell recalled hearing § 87(2)(b) screaming from the holding cells, that he wanted to go to the hospital, and that he wanted to get out of the holding cells. § 87(2)(b) was also using profanity at one point. PO Crockwell did not remember any officers talking or yelling at § 87(2)(b).

PO Crockwell did not know if officers had to throw § 87(2)(b) to the ground. He did not see PO Arias punch § 87(2)(b) in the face. He did not see an officer place § 87(2)(b) in a wrestling move. PO Crockwell had no memory of the incident apart from transporting him to the hospital.

Witness Officer: SGT LUIDELY BAEZ

- *SGT Luidely Baez is § 87(2)(b). He is a black male, § 87(2)(b), has black hair, and brown eyes.*
- *On December 19, 2012, SGT Baez worked from 06:55 AM until 3:52 PM. SGT Baez was working with the telephone switchboard operator. He was in uniform.*

Memo Book

SGT Beaz did not have any memo book entries related to this incident.

CCRB Statement

On October 16, 2013, SGT Luidely Baez provided the following statement at the CCRB (encl. k3-k5):

On December 19, 2012, SGT Baez was the desk officer. He did not have an independent recollection of the incident, despite being shown § 87(2)(b)'s arrest photograph, and the medical treatment of prisoner form.

Witness Officer: PO MICHAEL RAKEBRANDT

- *PO Michael Rakebrandt is § 87(2)(b). He is a white male, § 87(2)(b) has blond and gray hair, and blue eyes.*
- *On December 18, 2012 PO Rakebrandt worked from 6:30 PM until 3:05 AM on December 19, 2012. PO Rakebrandt was assigned to anti-crime and was conducting surveillance. He did not recall who is partner was that evening. He was assigned to an unmarked black Chevrolet Impala, but did not know the vehicle number.*

Memo Book

PO Rakebrandt did not have any memo book entries related to the incident.

At 9:15 PM, PO Rakebrandt stopped a male at Franklin Avenue and Union Avenue. At 9:20 PM, he finished the stop. At 11:05 PM, he stopped a male at Flatbush Avenue and Parkside Avenue. He logged his end of tour at 3:05 AM.

CCRB Statement

On June 27, 2013, PO Rakebrandt provided the following statement at the CCRB (13-15)

On December 18, 2012, PO Rakebrandt was conducting surveillance at multiple locations, identifying members of the Bloods gang in the field. He was not involved with the arrest of § 87(2)(b)

Medical Records

§ 87(2)(a) PBH §18(6)

§ 87(2)(a) PBH §18(6)

§ 87(2)(a) PBH §18(6)

NYPD Document(s)

Medical Treatment of Prisoners Form (encl. n2)

PO Crockwell transported § 87(2)(b) to the § 87(2)(b) on December 19, 2012, at § 87(2)(b) in handcuffs and leg shackles because § 87(2)(b) was complaining of chest pain and wrist pain. Hospital staff noted a contusion to the left shoulder region.

71st Precinct Command Log December 18 and December 19, 2012 (encl. 06)

Command log entry lists § 87(2)(b) being brought in at 10:25 PM. On December 19, 2012, at § 87(2)(b) he was brought to the hospital. He returned at § 87(2)(b). He was brought to the hospital again at § 87(2)(b). He was brought to central booking at 12:30 PM.

Arrest for Incident and Disposition

- § 87(2)(b)

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of February 25, 2013, with regard to the incident (encl. u7).

Civilian(s) Criminal History

- As of October 18, 2013, Office of Court Administration records reveal the following criminal convictions for § 87(2)(b) (encl. p1-p65).

Civilian(s) CCRB History

- [illegible]

Subject Officer(s) CCRB History

- PO Paul Dieugenia has been a member of the service for 5 years and there are no substantiated CCRB allegations against him (encl. b2).
- PO Eliot Arias has been a member of the service for 8 years and there are no substantiated CCRB allegations against him (encl. b1).
- PO Timothy Donohue has been a member of the service for 2 years and there are no substantiated CCRB allegations against him (encl. b3).

Conclusion

Identification of Subject Officer(s)

PO Dieugenia, PO Arias, and PO Donohue affirmed that they interacted with § 87(2)(b) on the date in question.

Other officers that § 87(2)(b) alleged acts of misconduct against were unable to be identified. PO Dieugenia did not recall having to assist with § 87(2)(b) being stripped down to one layer of clothing, nor did he recall officers having a confrontation with § 87(2)(b). PO Arias was unable to identify any of the other officers coming into the bathroom to help him. Subsequent interviews with officers present in the stationhouse at the time of incident yielded no additional subject officers, aside from PO Donohue, who affirmed that he used force against § 87(2)(b) but was unable to identify any other officers who did so.

Investigative Findings and Recommendations

Allegation A: Force - PO Eliot Arias used physical force against § 87(2)(b)

Allegation B: Force - PO Paul Dieugenia used physical force against § 87(2)(b)

Allegation F: Force - Officers used physical force against § 87(2)(b)

Allegation I: Force – PO Timothy Donohue used physical force against § 87(2)(b)

§ 87(2)(b) alleges that PO Dieugenia and PO Arias threw him to the ground and then an unknown number of unidentified officers punched him an unknown amount of times. The unidentified officers, PO Dieugenia, and PO Arias all kned him in the ribs an unknown amount of times. § 87(2)(b) admitted to refusing to remove extra layers of clothing repeatedly, even after being warned that the officers would have to do it for him by force. He also stated that he attempted to reposition himself on the ground while the officers were removing clothes from him.

After coming back from the hospital, § 87(2)(b) was told that he needed to be placed in leg shackles so that he could be brought to Central Booking. § 87(2)(b) refused to comply, and PO Dieugenia, PO Arias, and an unknown number of officers including PO Donohue had to force § 87(2)(b) into leg shackles. During that, § 87(2)(b) alleged that officers grabbed § 87(2)(b) and threw him to the ground. While on the ground, PO Arias punched him in the face and an unidentified officer kned him in the ribs. § 87(2)(b) admitted to resisting the officers by twisting his arm away and kicking his legs.

PO Arias stated that he took § 87(2)(b) into the bathroom by himself after § 87(2)(b) refused to remove his clothing and said, “I’m not a faggot. I’m not gonna take off my shirt.” PO Arias asked him multiple times to comply. § 87(2)(b) struggled with PO Arias and the two wound up on the floor. PO Arias admitted to punching § 87(2)(b) once or twice in the ribs. He denied using any other force except for having to take § 87(2)(b) to the ground again after he resisted attempts by PO Arias to take off his shirt. For the second incident, PO Arias was not

at the stationhouse at the time. He ended his tour at 3:05 AM and did not come back to the stationhouse until 6:30 PM the next evening.

Despite PO Arias stating that PO Dieugenia assisted him in the bathroom, PO Dieugenia did not recall that part of the incident with § 87(2)(b). He had a memo book entry stating that force had to be used to restrain § 87(2)(b) but stated he wrote that after someone told him about an incident taking place with § 87(2)(b). He did not know which officers participated in restraining § 87(2)(b).

PO Donohue stated that when § 87(2)(b) was to be taken to Central Booking, he refused to be placed in leg shackles. He remembered PO Crockwell and PO Dieugenia being present. PO Donohue said that an officer brought § 87(2)(b) to the ground because § 87(2)(b) had been kicking at PO Dieugenia and the other officers that were present. PO Donohue did not recall who the other officers were. After § 87(2)(b) was on the ground, PO Donohue assisted the other officers by pulling § 87(2)(b)'s arm behind his back and assisted in handcuffing him.

According to Patrol Guide Procedure 203-11, “Only that amount of force necessary to overcome resistance will be used to affect an arrest or take a mentally ill or emotionally disturbed person into custody” (encl. a1-a2).

§ 87(2)(b)
During his interview, § 87(2)(b) said the physicians reported that he sustained scratches to his neck, bruising to his ribs and abrasions to his arm. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

It is therefore recommended that **Allegations A, B, F, and I**, be closed as *exonerated*.

Allegation C: Force – An officer used a chokehold against § 87(2)(b)

Allegation D: Force – PO Eliot Arias used a chokehold against § 87(2)(b)

Allegation E: Force - PO Paul Dieugenia used a chokehold against § 87(2)(b)

§ 87(2)(b) alleges that the first time he was assaulted by officers in the precinct; an unidentified officer put him in a headlock. He also alleges that both PO Arias and PO Dieugenia put their hands around his throat and choked him.

PO Arias denied placing § 87(2)(b) in a headlock, restraining him by the neck or throat, or seeing other officers doing so. PO Arias was unable to identify the other officers who assisted him aside from PO Dieugenia. PO Dieugenia denied being present. SGT Rodgers said he saw

§ 87(2)(b) and PO Dieugenia interacting in the holding cells, but that the incident never escalated.

§ 87(2)(g)

it is recommended that that **Allegation C** be closed as *officers unidentified* and **Allegations D** and **E** be closed as *unsubstantiated*.

Allegation G: Abuse – PO Eliot Arias damaged § 87(2)(b) s property

Allegation H: Abuse - Officers damaged § 87(2)(b) s property.

§ 87(2)(b) stated that while in the bathroom, PO Aria and officers, as they were attempting to remove § 87(2)(b) s clothing since § 87(2)(b) refused to remove them on his own, ripped his tank top and long johns.

PO Arias stated that he gave § 87(2)(b) instructions to remove his clothes multiple times, both in the holding cells and in the bathroom. When § 87(2)(b) refused to comply, he instructed § 87(2)(b) to put his hands on the wall and that he would have to do it for him. § 87(2)(b) resisted PO Arias' attempt to remove his shirt for him, and the two wound up engaging in a struggle on the floor. While PO Arias was attempting to restrain § 87(2)(b) on the floor of the bathroom, § 87(2)(b) s shirt ripped. PO Arias was not sure if it was the t-shirt or the tank top. PO Arias did not recall § 87(2)(b) s long johns being damaged.

Patrol Guide Procedure 203-11 states that the police must, “use minimum necessary force.”

§ 87(2)(g)

it is recommended that **Allegations G** and **H** be closed as *exonerated*.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date